

These Matters Are Taken Up By Video ... vs Bhawanipatna In Part So Far As The ... on 29 April, 2021

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Bench: S. Panda

MATA No. 102 of 2015

07. 29.04.2021

MATA Nos. 102 of 2015 & 182 of 2015

These matters are taken up by video conferencing mode.

Heard learned counsel for the parties.

The appellant-husband in MATA No. 102 of 2015 has challenged the judgment and decree dated 08.04.2015 passed in C.P. No. 31 of 2014 by the Judge, Family Court, Bhawanipatna in part so far as the direction for payment of Rs.8,00,000/- to the wife towards her maintenance and education as well as the maintenance, welfare and future prospect of the daughter who is in the custody of the wife. The Court below has allowed the application filed under Section 13-B of the Hindu Marriage Act and dissolved their marriage on mutual consent without any permanent alimony to the wife as well as cost of the litigation.

The appellant-wife in MATA No. 182 of 2015 has challenged the same with a prayer to direct the respondent-husband to pay Rs.50,00,000/- (fifty lakhs), i.e. Rs.25,00,000/- each to the wife and the minor daughter for their maintenance.

Parties have filed an application under section 13 (B) of the Hindu marriage Act, 1955 before the learned Judge, Family Court, Bhawanipatna, registered as Civil Proceeding No. 31 of 2014. They pleaded that their marriage was solemnized on 18.04.2012 according to their caste, custom

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and Hindu rites and both of them lived as wife and husband at Rourkela till 15.07.2013. Since after the marriage both the parties are not pulling on well, therefore, the wife was

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compelled to leave the matrimonial home on 15.07.2013 and admittedly thereafter they lived separately. Out of their wedlock, the wife gave birth a baby girl. The relationship between both the parties strained day-by-day after the birth of

their daughter which compelled them to dissolve their marriage by decree of divorce on mutual consent for which they filed the petition. The matter was referred to the Judge, Permanent and Continuous Lok Adalat at Bhawanipatna for conciliation through mediators. The mediator submitted his report indicating that both the parties are not interested for mediation and as such the mediation failed. Accordingly the matter was received back as there was no chance of compromise and reunion between the parties.

Learned Judge, Family Court while passing the judgment and decree observed that both the parties in their affidavit evidence stated that they will not claim any amount of maintenance/alimony from each other and their marriage is to be dissolved for all social purpose and they filed the joint compromise petition for dissolution of their marriage. Both the parties in their affidavit stated that their daughter born out of the wedlock shall stay with the wife and the husband will never claim custody of their daughter in future. However, there is no terms and conditions regarding the maintenance, education, health and future prospect of that daughter born out of the wedlock of both the parties. It was further observed that the parties have come up to the court for dissolution of their marriage on mutual consent, however, for the welfare and good interest of both parties, the court ought to pass an order dissolving their marriage on mutual consent and on

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such dissolution of marriage, the wife will get their daughter and she will be the custodian of that daughter and will maintain her, upbringing her and to look after her comforts, welfare, education, health and marriage in order to establish her in the society. The court below further observed that the husband during his examination stated that he will pay the maintenance and future prospect of his child to the mother guardian according to his capacity. The husband is a business man at Rourkella, whereas the wife is a housewife. The wife has no source of income whereas the husband being a businessman having status, standard and prosperity in the society who can afford the maintenance of his daughter in the custody of the wife. The Court below also observed that it is the duty of the husband petitioner to maintain his wife although she has no financial interest over him. Accordingly the Court below thought it appropriate to award permanent alimony of Rs.8,00,000/- to be paid to the wife towards her maintenance as well as the maintenance and future prospect of her daughter.

Learned counsel for the appellant-husband submitted that the decree of dissolution of marriage passed on consent of the parties and in view of the fact that the wife has not claimed any maintenance, the Court below should not

have been awarded maintenance to the child. He however submitted that in absence of any material what so ever, in respect of the income and property of the appellant-husband, the quantum fixed by the Court below needs to be interfered with.

On the other hand, appellant-wife in her appeal,

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i.e. MATA No. 182 of 2015 has categorically stated that the husband is not only an affluent businessmen, but also a highly rich person and has undertaken to pay maintenance and future prospect of the child being the father and he has obligation to pay the same to the child as well as to maintain his wife since the wife has no income/property for her sustenance. Therefore, the impugned order needs to be interfered with.

Section-10 of the Family Court Act stipulates the procedure generally. The same is quoted as hereunder.

"10. Procedure generally.-(1) Subject to the other provisions of this Act and rules, the provisions of the Code of Civil Procedure, 1908(5 of 1908), and of any other law for the time being in force shall apply to the suits and proceedings other than the proceedings under Chapter IX of the Code of Criminal Procedure, 1973(2 of 1974), before a Family Court and for the purpose of the said provisions of the Code, a Family Court shall be deemed to be a Civil Court and shall have all the powers of such Court.

(2) Subject to the other provisions of this Act and the rules, the provisions of the Code of Criminal Procedure, 1973 (2 of 1974), or the rules made there under, shall apply to the proceedings under Chapter IX of the Code before a Family Court.

(3) Nothing in sub-section (1) or sub-section (2) shall prevent a Family Court from laying down its own procedure with a view to arrive at a settlement in respect of the subject-matter of the suit or proceedings or at the

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truth of the facts alleged by the one party and denied by the other."

As per Section-23 of the Hindu Marriage Act, 1955, the duty casts upon the Court in a proceeding under the Act that the Court must satisfy that any of the grounds for granting relief exists and the applicant is not in any way

taking advantage of his or her own wrong or disability for the purpose of such relief whether defended or not.

In view of the above provision as well as Section-13-B of the said Act, when such an application was filed, the Court shall on being satisfied after hearing the parties and after making such inquiry as it thinks fit should have passed the decree. However, in the present case since the Court below has complied a part of the provision stipulated under section 23 of the Hindu Marriage Act and has not complied the conditions whether the wife needs permanent alimony for her sustenance as she has no income/property, the same has not been properly enquired into, as it appears since the wife has filed an appeal for her maintenance as well as the maintenance of the child.

This Court in the decision reported in AIR 1987 Orissa 1 (Smt. Puspallata Rout v. Damodar Rout), held that decree obtained by exercise of fraud on wife is a nullity. When the fraud is practised on the court, the judgment is liable to be recalled by court passing decree in exercise of its inherent powers.

In view of the above, this Court sets aside the judgment and decree dated 08.04.2015 passed in C.P. No. 31

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of 2014 by the Judge, Family Court, Bhawanipatna and remit the matter back to the learned Court below to take a decision afresh by ascertaining the status of the parties, more particularly the status of the husband and his liability towards the maintenance of the wife and child. The Court below ought to have assessed properly the quantum of maintenance of the wife since she has no income and also the child keeping in view the child's future prospect and well being vis-à-vis the status of her father and mother.

Both the MATAs are accordingly disposed of.

As the restrictions due to the COVID-19 situation are continuing, learned counsel for the parties may utilize a soft copy of this order available in the High Court's website or print out thereof at par with the certified copy in the manner prescribed, vide Court's Notice No.4587 dated 25th March, 2020.

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S. Panda, J.

..... S.K.Panigrahi, J.